

The U.P. Board of Secondary Sanskrit Education (Constitution, Powers and Duties of Committees and Sub-Committees) Regulations, 2012

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State of Uttar Pradesh - Act

The U.P. Board of Secondary Sanskrit Education (Constitution, Powers and Duties of Committees and Sub-Committees) Regulations, 2012

UTTAR PRADESH

India

The U.P. Board of Secondary Sanskrit Education (Constitution, Powers and Duties of Committees and Sub-Committees) Regulations, 2012

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The U.P. Board of Secondary Sanskrit Education (Constitution, Powers and Duties of Committees and Sub-Committees) Regulations, 2012

Published vide Notification No. 907/15-9-13-25(30)-2004 T.C dated Lucknow, December 12, 2013, U.P. Gazette Extraordinary, Part 4, Section (Ka), dated 12th December, 2013

In pursuance of the provisions of clause (3) of Article 348 of the Constitution of India, the Governor is pleased to order the publication of the following English translation of notification number 907/XV-9-13-25(30)-2004 T.C. dated December

12, 2013:

The following regulations which the Uttar Pradesh Board of Secondary Sanskrit Education makes in exercise of the powers under Section 12 read with sub-section (4) of Section 18 of the Uttar Pradesh Board of Secondary Sanskrit Education Act, 2000 (U.P. Act

no. 32 of 2000

) after obtaining the previous approval of the State Government with a view to regulating the constitution, powers and duties of Committees and Sub Committees appointed by the said Board Under sub-section (1) of Section 18 of the said Act are hereby published as required under sub-section (1) of Section 22 of the said Act.

Chapter-1 Preliminary

1.

01.

These regulations may be called the Uttar Pradesh Board of Secondary Sanskrit Education (Constitution, Powers and Duties of the Committees and Subcommittees) Regulations, 2012.

1.02

They shall come into force with effect from the date of their publication in the Gazette.

Chapter 2

Committees of the Board

2.

01.

In addition to the Committees specified in sub-section (1) of Section 18 of the Uttar Pradesh Board of Secondary Sanskrit Education Act, 2000, the Board shall appoint the Committees of Courses for different subjects and other Committees under sub-section (3) of Section 18 of the said Act.

2.02

The number of the members appointed by the Board to any Committee of Courses shall as may be decided by the Board, be not less than three and not more than seven.

2.03

The Committee of Courses for any subject shall be constituted in the following manner-

(a)

members of the Board who are experts in any subject shall be elected to the Committee of Courses of the subject concerned;

(b)

if members of the Board who are experts in the subject concerned are not available in adequate number, experts in the subject concerned from outside, whose names are proposed by the members of the Board, shall be appointed, provided such experts reside in Uttar Pradesh and accept membership of the committee concerned; .

(c)

in the case of the Committee of Courses for Constructive subjects, the members shall be appointed in such a manner that each subject of constructive group is represented by at least one expert of the subject;

(d)

where names of experts in any particular subject or subjects are not proposed by the members of the Board in adequate number under clause (b), the Chairman shall have the right to nominate experts in that subject or subjects to the extent required;

(e)

no member of the Board or outside expert shall serve on more than two Committees of Courses;

(f)

the Chairman shall have the right to cancel the appointment of any member of any Committee of Courses if it is found that the member is not an expert in the subject to the Committee of Courses to which he was appointed, provided that no such appointment shall be cancelled unless an opportunity has been afforded to the member concerned to show that he is an expert in the subject concerned.

Explanation - For the purposes of this regulation an expert in a subject means a person who possesses the minimum qualifications prescribed for appointment as lecturer to teach that subject Uttar Madhyama classes.

2.04

In case the number of members of the Board who are experts in a subject or the number of outside experts in a subject proposed by the members of the Board, exceed the number required for the constitution of the Committee of Courses in such subject, members of the Committee shall be elected by the Board by proportional representation by means of a single transferable vote.

2.05

Every Committee of the Board shall have a convener who shall, be nominated by the Board from amongst the members of the Committee concerned, provided that no person shall serve as convener of more than one Committee. In the event of the convener of any Committee ceasing to hold office, the Chairman of the Board shall nominate a substitute from amongst the member of the Committee concerned, to carry on the work till the convener nominated by the Chairman as substitute is approved by the Board for the residue of the term of the Committee.

2.06

In case of the vacancy occurred due to the expiry of term of the elected or nominated members as laid down in sub-section (1) of Section 5 of U.P. Act. No. 32 of 2000 and the constitution of the Board was not possible and the reconstitution of any Committee under sub-section (1) of Section 18 is required, notwithstanding anything in the Regulations, the constitution of the Committee may be made by less number of members mentioned in the Regulations.

Chapter 3

Committees of Courses

3.

01.

The Board shall appoint a Committee of Courses in each of the subjects the classifications of which shall be made in such form and with such modification and alternations which the Board may decide from time to time.

3.02

Every committee of courses shall propose the statement of concerned subject for the consideration of the Board. The said Committee shall also propose such number of appropriate books as the committee may think fit for the recommendation and fixation by the board.

3.03

The meetings of the Committees of Courses shall be held generally in the middle of September and December. The proposal submitted by the Committee of Courses shall be sent to Curriculum Committee as soon as possible. The Curriculum Committee shall consider the proposals and submits its observations. The proposals of the Committee of the Course along with the observation of Curriculum Committee shall be placed before the Board for its decision in the next meeting thereof.

3.04

The courses as finally approved and sanctioned by the Board shall be published in the prospectus which shall be issued by the Secretary of the Board about two years before the dated of the examination for which those courses have been prescribed.

Provided that the Board may publish the prospectus for Prathma, Purva Madhyama and Uttar Madhyama or jointly for all three Examinations:

Provided further that the Board instead of publishing the Prospectus in respect of all the subjects of any of the Examinations may publish Prospectus for one or more subjects only.

3.05

(1) The Board may, in accordance with the courses as finally approved and sanctioned by it, get the text books and other connected materials, if any, prepared in respect of subject as it may consider necessary; and after being approved by the Committee of Courses concerned and by the Chairman respectively, the Board shall get them published under the authority of the State Government. The Board shall then prescribe them as text-books.

(2)

for the preparation under clause (1) of each book of any subject, which includes original writing as compiling, there shall be constituted the following Boards, viz.-

(i)

the Board of Editors/Writers, and

(ii)

the Board of Advisors.

(3)

(a)

Subject to the provisions of sub-clauses (b) and (c) the Board of EditorsAA/riters shall comprise the following-

1. one teacher actually teaching the subject concerned to Purva Madhyama classes;
2. one teacher actually teaching the subject concerned to Uttar Madhyama classes;
3. one teacher of post-graduate/Degree College or University in the subject concerned;

4.

one teacher of a Training College;

5.

two Educational Experts/Subject Specialists.

(b)

It shall be obligatory to include a teacher of Uttar Madhyama Classes teaching the subject concerned on the Board of EditorsAA/riters constituted for preparation of the book for the Prathma or Purva Madhyama classes, but no Prathma or Purva Madhyama teacher of the subject concerned shall be included on the Board of EditorsAA/riters constituted for preparation of the book for Uttar Madhyama classes.

(c)

The Chairman, if he considers it necessary, shall have the power to nominate one member in each Board of Editors/Writers in addition to the members mentioned in sub-clause (a). He shall also have the power to fill up a vacancy in the Board of Editors I Writers at his discretion as and when it occurs.

(4)

The Board of Advisors shall have three members who shall be appointed from amongst the outstanding scholars of the subjects concerned.

(5)

For the constitution of the Board referred to in clause (2), the Committee of Courses concerned will propose five times the names of the required number: The Chairman will appoint the required number of members for each group out of the said panel provided that if, in his opinion, it is necessary for obtaining the services of eminent scholars and subject experts, he may appoint persons from outside the panel.

(6)

The Committee of Courses concerned before finally approving the book may, if it considers necessary, make suggestion to the Board of Editors/Writers. during the preparation of the manuscripts.

(7)

After the manuscript for a book has been finally approved, it shall be approved by the Committee of Courses concerned and by the Chairman respectively and thereafter, the Board shall get it published under the authority of the State Government.

(8)

Any book prepared by the Board may, after it has continued for four examinations be changed after recommendation of the Committee of Courses after obtaining prior approval of the State Government, provided that minor changes may be made therein by the Board as and when necessary.

3.06

Notwithstanding anything in regulation 3.05 whenever the Board considers necessary it may with the approval of the State Government invite the books in a subject for a period of one year of the examination conducted by it. The Board thinks an announcement published in the Gazette it may put the text books before the Curriculum Committee for its reviews. In such case the reviewers and the payment of fees by the persons submitting the books shall be in the manner mentioned hereunder-

(1)

The Committee of Courses shall prepare the list of names containing at least three times names of reviewers of the required number and which may be submitted by the Secretary to the Chairman. The names of whom have been included in the list shall be well qualified in the subject in which the book is to be reviewed. The appointment of reviewers shall be made by the Chairman from such list.

(2)

No member of the Committee of Courses shall be the reviewer of the books submitted for the consideration of that

committee.

(3)

Where a person is the member of the Board or the Curriculum Committee or the Committee of Courses in a special subject, the book of which he is the writer or the publisher or in which his direct or indirect interest shall not deserve to be considered for any examination of the Board in that subject at any time after one month of the decision of the Board for inviting books in that subject or before the approval or fixing such books by the Board.

(4)

Any person who has submitted the text book for consideration, shall not become the reviewer till his book is under consideration.

(5)

Adequate secrecy shall be maintained in respect of the names of the reviewers, publishers and writers. Every reviewer shall present in detail the merits and demerits of the book. If the book is rejected, the reviewer shall give opinion thereof in writing.

(6)

Every reviewer shall arrange the appropriate books in order of their merits and demerits.

(7)

The remuneration for each book of Purva madhyama and Uttar madhyama classes shall be made in the following manner.

Prathma And Purva Madhyama

Rs. 30, if the text book contains upto 100 pages.

Rs. 45, if the text book contains more than 100 but not exceeding 200 pages.

Rs. 60, if the text book contains more than 200 pages.

Uttar Madhyama

Rs. 40, if the text book contains 100 pages.

Rs. 55, if the text book contains more than 100 but not exceeding 200 pages.

Rs. 75, if the text book contains more than 200 pages.

(8)

Each text book shall be reviewed by the panel of three reviewers.

(9)

Review fee shall be paid by the authors and publishers as follows-

Prathma and Purva Madhyama

Rs. 300 for each text book of language subject.

Rs. 200 for each supplementary book of language subject.

Rs. 200 for each text book of other subject.

Uttar Madhyama

Rs. 350 for each text book of language subject.

Rs. 250 for each supplementary book of language subject.

Rs. 250 for each text book of other subject.

(10)

The fee deposited by the publishers and writer shall not be refunded, but under following circumstances fee may be refunded after the reduction of Rs. 20-

(a)

when review of fee is not permissible, but it was paid.

(b)

when text book is not reviewed while review fee was paid by the publishers and writers.

(c)

where the review fee was deposited for those books that were not asked to submit.

(d)

where review fee was deposited, but text book was not made available to the Board.

3.07

Notwithstanding anything contained in this chapter these regulations, the Board shall have authority to fix or approve

any book or the books for the examination of any year.

3.08

Any Committees may draw the attention of the Board towards a case related to the examination and course subject or subjects with respect to the concerned subject or subjects.

3.09

The meeting of two or more of Committee of Courses may be held on the request of the Board and may make joint report on any case with which they are separately or jointly concerned.

Chapter-4 The Curriculum Committee

4.01

The Curriculum Committee shall consist of the following-

(1)

Five members of the Board elected in such a manner that at least one member shall represent each of the five categories specified in subsection (2) of Section 18 of the Uttar Pradesh Board of Secondary Sanskrit Education Act, 2000;

(2)

Director/Principals of specialized Institution of the Department and representative of National Council of Educational Research and Training who are members of the Board;

(3)

The Conveners of different Committees of Courses of subjects other than those in which the number of candidates registered in the year preceding that of election is less than fifty thousand in the High School Examination provided they are members of the Board;

(4)

The Secretary of the Board as ex-officio Member-Secretary.

4.02

Subject to the sanction and control of the Board, the duties of the Curriculum Committee shall be-

(a)

to consider the total number of compulsory and optional subjects of each of the Board's examination;

(b)

to arrange the standards of the courses of Prathama, Purva Madhayama and Uttar Madhayama stages in a regular-graded order;

(c)

to recommend curricula for the Intermediate Examination leading to both University and vocational courses;

(d)

to consider proposals for the introduction of new subjects and the exclusion of existing subjects;

(e)

to consider question of the formation of groups of subjects and the alternation of one group with another;

(f)

to fix the number of question papers to be set in each subject after receiving recommendations from the Committees of Courses concerned and to fix duration of time for each paper;

(g)

to propose maximum and minimum marks for each subject and for each part of a subject after receiving recommendations from the Committee of Courses concerned;

(h)

to recommend the standard of length for written examinations in different subjects after receiving, recommendations from the Committees of Courses concerned;

(i)

to consider the recommendations of the Committee of Courses with regard to the courses of study; and

(j)

to prescribe minimum qualification for teachers, Heads of Institutions and other employees of Institutions."

Chapter 5

Examinations Committee

5.

01.

The constitution of Examinations Committee shall be made as follows-

(a)

Five members of the Board are to be elected in such a manner that atleast one member shall represent each of the five categories specified in sub-section (2) of Section 18 of the Uttar Pradesh Board of Secondary Sanskrit Education Act, 2000.

(b)

The Secretary of the Board shall be the ex-officio convener of the Committee.

5.02

Subject to the sanction and control of the Board, it shall be the duty of Examinations Committee-

(1)

to recommend the dates for holding Board's Examinations :

Provided that in any unforeseen circumstances or eventuality, the Chairman shall have the power to alter any date of examination or to order cancellation of examination in any subject or paper and holding of examinations afresh in that subject or paper;

(2)

to consider the recommendations of the Committee of Courses with regard to appointment of examiners, Board of Moderators and to prepare list of Examiners and Moderators for the approval of the Board;

(3)

to recommend the names of persons for appointment as Tabulators and Collators for the Examination conducted by the Board;

(4)

to recommend the name of persons for appointment as Screeners for screening the answer books of candidates suspected or reported to have used unfair means at the Board's Examinations;

(5)

to prescribe Forms of application to be filled up by the candidates applying for permission to appear at the Board's examinations;

(6)

to prescribe Forms of Certificates, to be granted to successful candidates at the Board's Examinations;

(7)

to prescribe the mode of conducting the oral and practical tests;

(8)

to recommend for formation of policy about establishing the examination centers, evaluation centers and collection centers :

Provided that the Regional Joint Director of Education shall propose to establish examination Centers in the following manner through the sub-Committee constituted Under his Chairmanship :

(i)

District Inspector of Schools of concerned district.

(ii)

Regional Deputy Inspector of Sanskrit Schools, Further-Provided that District Inspector of Schools at District Level, above mentioned subcommittee constituted by the Regional Joint Director of Education shall be formed with the help of sub-committee as follows-

(i) District Inspector of Schools

Chairman

(ii) One Senior Principal of Government Inter College of the

District

Member

(iii) District Basic Education Officer

Member

(iv) One senior Principal of Secondary Sanskrit School

Member

Provided further that the Secretary of the Board shall have the power to change or constitute them or dissolve any examination centre, evaluation centre or collection centre as may be required under circumstances.

(9)

to frame rules for giving grace marks;

(10)

to frame rules for giving dictation writers to the examinees;

(11)

to arrange for publishing the results of the examinations of the Board;

(12)

to recommend the punishment to be given to the Examinees, Moderators, Compliers and Collators found guilty of misconduct or negligence;

(13)

to consider and recommend about other subject related to conduction of Examinations, assigned by the Board;

(14)

to appoint a Sub Committee to scrutinize the Application Forms of private examinees for the examinations of the Board and to grant permission to appear in examinations.

Chapter-6 Committee of Disposal of Cases of Unfair Means

6.01

There shall be a Committee for disposal of cases of unfair means at the Board's Examination to be constituted by the chairman. The Committee shall consists of-

(1)

One member of the Examinations Committee or the Result Committee, who shall be the convenor of the Committee;

(2)

One member nominated by the Board;

(3)

One Deputy Secretary of the Board to be nominated by the Secretary.

6.02

Powers and function of the Committee-

(1)

to consider cases where examinees have concealed any facts or made a false statement in their application forms or have committed a breach of rules or regulations to secure undue admission to an examination or have used or are suspected to have used unfair means or have committed fraud or an offence involving moral turpitude or indiscipline or have appeared in the examination with the help of amanuensis in contravention of the rules or run away with answer book or have destroyed the answer book, and to award penalty which may be one or more of the following-

(a)

cancellation of the examination concerned;

(b)

exclusion from the examination concerned or from sub-subsequent examination including higher examinations of the Board;

(c)

Withdrawal of certificate of having passed the examination;

(2)

to consider complaints against Centre Superintendent, Head of institution, invigilator, teacher or other employee in regard to any of their lapses, negligence or irregularities at the examination of the Board and to make recommendations in regard to punishment to be awarded to any of them;

(3)

to consider such other matters which are not specified in these regulations;

(4)

to exercise other such powers and functions as may be assigned to it by the Board from time to time.

Chapter 7

Results Committee

7.

01.

The Results Committee Shall Be Constituted As Follows-

(a)

The Chairman of the Board as ex-officio Chairman.

(b)

Five members of the Board to be elected whose selection shall be made in such a manner as specified in the categories of sub-section (2) of Section 18 of the Uttar Pradesh Board of Secondary Sanskrit Education Act, 2000. At least one member from each category is represented.

(c)

The Secretary of the board shall be the ex-officio member secretary.

7.02

The following shall be the function of the results Committee under control and acceptance of the Board -

(1)

to scrutinize and declare the result of the examinations conducted by the Board and to reduce the minimum pass marks as required.

(2)

to scrutinize the complaints against the question papers that affect examination results.

(3)

to take decision about those examinees who are unable to appear in one or two or whole subject in practical and written examination.

(4)

to decide the cases of defective question papers.

(5)

to decide the cases of those examinees who were permitted entry by the Superintendent of the Centre after half an hour of the examination period.

(6)

to take decision about the special arrangements of the examinations of any district.

(7)

to decide the cases of prior opening of question papers and granting extra time to examinees.

(8)

to take decision about those candidates whose answer sheets are lost or not found after the duration of two months from the declaration of the results.

(9)

to stop the results in cases of concealment of fact by the examinees, false statement in Application Forms or wrong admission through unjustified manner or illegal means in examinations or guilt of moral turpitude or indiscipline.

(10)

to stop the results in cases of carrying the lethal weapons or attack over any person related to conduction of examination inside or outside of educational premises or threatening to attack or use of prohibited language or obtaining the facility of declaration of the result on the false basis.

(11)

to exercise such other powers delegated by the Board from time to time.

Chapter 8

Finance Committee

8.

01.

The Finance Committee shall function as an advisory body in all matters concerning the finance of the Board.

8.02

The Finance Committee shall be constituted as follows-

(a)

a member of the Board who is a member of the State Vidhan Sabha-Convener.

(b)

five members of the Board to be elected in such a manner that at least one member shall represent each of the five categories specified in sub-section (2) of Section 18 of Uttar Pradesh Board of Secondary Sanskrit Education Act, 2000.

(c)

The Secretary of the Board, ex-officio Member Secretary.

8.03

The Finance Committee shall recommend for the consideration of the Board, the amount of fees to be charged for various examinations and for other things connected with the examinations.

8.04

The Finance Committee shall also recommend for the consideration of the Board, the rates of remuneration for the various remunerative jobs of the Board.

8.05

The Finance Committee shall consider and give its recommendations regarding any other financial matter concerning the Board referred to it by the Board.

Chapter 9

Recognition Committee

9.

01.

The constitution of the Recognition Committee shall be made as follows-

(1)

Five members of the Board to be elected as specified in sub-section (2) of Section 18 of Uttar Pradesh Board of Secondary Sanskrit Education Act, 2000 representing each category.

(2)

The secretary of the Board shall be the ex-officio member of the Committee.

9.02

The meeting of the Recognition Committee shall be held at the office of the Secretary of the Board at Lucknow, provided under specified circumstances the meeting of the Recognition Committee can be held at any other place with prior approval of the Chairman of the Board.

9.03

Subject to the approval and control of the Board, following shall be the functions of recognition Committee -

(1)

to prescribe the rules and criteria for granting recognition to the Institution provided the rules and criteria shall be applicable after approval of the state Government;

(2)

to consider the application for granting recognition to Institutions;

(3)

to consider any matter delegated to it by the Board.

Explanation - Term to "give recognition" means to give recognition to Institutions for conducting the examinations of the Board for the first time or thereafter to give recognition for additional group or subject for such examinations.

9.04

(a)

An application for granting of recognition to an Institution shall be made in the prescribed Form duly filled in and signed by the manager of the concerned institution and must reach in the office of the District Inspector of Schools in two copies not later than December 31st of the year preceding that in which it proposed to opening classes. The application Form may be received with a late fee of Rs 5,000.00 from 1st January to 31st March. Forms received after 31st March shall not be entertained.

(b)

Application Form for recognition shall not be accepted by the Secretary of the Board till it has the crossed Bank Draft in favour of the Secretary, Uttar Pradesh Board of Secondary Sanskrit Education, Lucknow as proof of filing the application along with fee as follows-

(i) First time Prathma, Purva Madhyama or Uttar Madhyama

Rs.10,000.00

(ii) For extra subject recognition in Prathma, Purva Madhyama or Uttar Madhyama examination

Rs.2,500.00

(c)

No action shall be taken on application received incomplete in any form.

9.05

District Inspector of Schools, on receipt of two copies of Application Form for recognition under Regulation-9.04, shall after such enquiry as he/she deems necessary make a report and recommendation regarding the fitness of the Institution for the recognition on one of the application and transmit the same to the Secretary of the Board retaining the other copy of the application for once record:

Provided that before an application for recognition is submitted before the recognition Committee the Director or his nominee who shall not be below the rank of Deputy Director of Education, may also, where necessary, submit his report and recommendation in regard to the fitness of the Institution for recognition.

9.06

For the recognition, following description in the Application Form shall be given in details-

(a)

Is there a genuine need of the Institution in that area?

(b)

The bye-laws of the Committee of management, if any.

(c)

The names of Manager and Secretary of the Institution or the name of the person empowered for correspondence.

(d)

The qualifications and pay scales of the teachers.

(e)

Arrangement of place for classes and hostel.

(f)

Financial conditions of the Institution with sources of income.

(g)

Number of student in every class.

(h)

Is there a criterion for the entry of poor students and amount of fee charged.

(i)

Provision for decoration, furniture and adequate library.

(j)

Arrangement for health, entertainment, discipline and playground for students.

(k)

Name of examination or examinations for which recognition to be desired.

(l)

Availability of land, building for Institution and arrangement of place for classes along with attested photocopies of Registry (Bainama/Danpatra) of the land/building/playground showing that the land/building/playground are owned by the society or trust and Khatauni attested by revenue officer should be attached compulsorily.

(m)

Construction of the school building should be made according to the security standard prescribed in the National Building Code.

(n)

Arrangement of fire extinguisher equipment should be made in the school according to need. A certificate of competent authority should be attached.

9.07

Any other information desired by the Board to Application Forms.

9.08

Inspection Officer at the time of presenting the report should mention that in his views for providing or not providing recognition for subjects.

9.09

Each and every recognized Institution shall follow the following conditions-

(a)

the society or trust that desires to establish a secondary Sanskrit Institution, shall be registered under the Societies Registration Act, 1860.

(b)

under sub-section (1) and (2) of Section 24 of the said Act, the Institution should remain ready for inspection of Prathama, Purva Madhyama or Uttar Madhyama.

(c)

all sorts of informations asked by the Board, shall be produced accordingly.

(d)

The Institution will follow the Education code that are applicable and is not inconsistent with the Act and Regulations and will function accordingly.

(e)

The Endowment Fund of an Institution may be in the form of Fixed Deposit or ten years security deposit certificate or ten years treasury saving deposit certificate or the other like forms in which the interest is actually paid every year and not allowed to be accumulated for many years. The annual income of the Endowment Fund and the interest incurred shall be deposited regularly by the management in the maintenance fund of the Institution. The Endowment Fund should be in the name of the Institution free from all liabilities. The Endowment Fund should be pledged with in the name of concerned District Inspector of Schools.

(f)

The reserved property of the Institution shall be in the Form of cash or National Saving Certificates which shall be pledged to in the name of District Inspector of Schools.

(g)

Unless State Government provides otherwise, any Institution shall be neither allowed to prepare the students of rival examinations nor be allowed to appear in the same.

(h)

The Institution shall make arrangement for health, recreation and sanitation for hostel inmates.

(i)

On being directed by the Board, the Institution shall provide teachers, building, equipments etc. for the Board.

(j)

Without written permission of District Inspector of Schools, classes shall not be arranged out of the campus.

(k)

Without recognition of the Board, classes shall not be opened in any subject or category.

9.10

If the Board is of the opinion that an Institution deserves for granting recognition, can direct the Secretary of the Board to include its name in the list of recognized Institutions. The Secretary of the Board shall inform the District Inspector of Schools about the recognition granted, the conditions for the recognition, year of the examination and the subjects for which recognition has been granted:

Provided that the Board may refuse to grant the recognition to any Institution when the Director has withheld his recommendation.

9.11

No Institution which is recognized by the Board as Prathama, Purva Madhyama and Uttar Madhyama shall be closed down without prior permission of the Board and unless a written notice by registered post is given to the Secretary of the Board with a copy to the Director at least one year prior to the proposed date of closure, setting fourth the reasons for the closure of the Institution. The Board may permit the closure of the Institution subject to such conditions and transfer of records of the Institution to any other Institution or authority as it may deem fit.

9.12

(a)

When the Director under sub-section (4) (a) of Section 24 of the Act refers the withdrawal of any recognition of the Institution to the Board, the Board shall issue the notice to the Manager of the Institution to show cause why the withdrawal of recognition is not to be made.

(b)

After considering over the explanation submitted by the Manager the Board can either withdraw the recognition or issue the warning to the Manager to remove the deficiencies within stipulated time.

(c)

If the Institution fails to remove the deficiencies with in the stipulated time, the Board may withdraw the recognition of the Institution.

9.13

On the recommendation of the Director, the Board may re include the name of the Institution in the list of recognized Institutions.

Norms for Recognition

(1)

Area of Land-For recognition of Prathama, Purva Madhyama and Uttar Madhyama, an institution has to have 650 square meters area of land in rural areas in which 162 square meters area is for playground. In urban areas an institution has to have 450 square meters area of land in which 120 square meters area is for playground.

(2)

Building-

(a)

Institution has to have 15 X 20 = 300 square feet class room for each and every class.

(b)

One room for library' and reading 15 X 20 = 300 square feet.

(c)

Administrative rooms-

(1)

Principal Room - 12 X 10 square feet.

(2)

Teachers room 12X10 square feet.

(3)

Office - 12 X 10 square feet.

(4)

Store Room - 10 X 15 square feet.

(5)

Laboratory -15 X 20 square feet.

(6)

Alternative classroom - 10X15 square feet.

(d)

Description of Ceiling-

(1)

Firm or

(2)

Asbestos or

(3)

Tin Shade

(4)

Floor should be firmed

(e)

Building on rent shall not be considered for recognition. On an application for extra category subjects of Prathama, Purva Madhyama or Uttar Madhyama, after the fulfillment of the other requirements of recognition, Board Shall consider it in view of already recognized building provisions are fulfilled.

(f)

There shall be adequate arrangement of separate toilets and latrines for teachers and students in the Institution.

(3)

Wooden Appliances-For the classes of Prathama, Purva Madhyama or Uttar Madhyama single seated desks and chairs shall be arranged. For the Head, Teachers and staff of the Institution an adequate arrangement of chairs, tables and black boards are to be arranged.

(4)

Library-There shall be books of Rs. 2000.00. Besides it, there shall be arrangement of books of Rs. 200.00 for every extra section.

(5)

Teaching Material-Maps and charts of Rs. 500.00 shall be arranged.

(6)

Number of Students-30 students shall be enrolled in Prathma classes, 35 students in Purva Madhyama Classes and at least 40 students in Uttar Madhyama classes.

Chapter 10

General Rules

10.

01.

The Institution desiring for recognition shall have teachers having the qualification as decided by the Uttar Pradesh Board of Secondary Sanskrit Education.

10.02

There shall be an additional endowment fund of Rs. 15000.00 for Purva Madhyama and Rs. 5000.00 for Uttar Madhyama from which there shall be an annual income of Rs. 900.00 and Rs. 1200.00 respectively.

10.03

In the radius of 5 kilometer, recognition to other Sanskrit school shall not be granted.

10.04

Recognition to higher classes shall not be granted to the Institution, where 5% or 25 students (which ever is greater) are punished for using unfair means, for the next two years.

10.05

Recognition for higher classes shall not be considered to those Sanskrit Institutions where Government grants are misused, having indiscipline or disorder.

10.06

The Institution running unauthorized classes shall not be considered for further recognition for higher classes.

10.07

The application for recognition submitted after 31st of March of the year, shall not be considered by the Board. Cases of recognition shall be finalized by 31st May of the year. No consideration after that date shall be made.

10.08

Recognition to Prathma, Purva Madhyama and Uttar Madhyama shall be granted separately.

10.09

The Board shall conduct the following examinations-

(a)

Prathma

(b)

Purva Madhyama

(c)

Uttar Madhyama

10.10

The examinations of the Board shall be held on dates, time and places decided by the Board.

10.11

The examinations of the Board shall be partly viva-voce and practical and partly written. Viva-voce and practical examinations shall be conducted by the examiners appointed by the Board according to the procedure established by

the Examination Committee time to time. The written examinations shall be held through the question papers and question papers shall be distributed at one time at every center where the examination is to be held.

10.12

The certificates for examinations conducted by the Board, shall not be given to the examinees till they qualify in every subject as decided by the Regulations:

Provided that any candidate found ineligible, his/her candidature shall be cancelled and pass certificate withdrawn or cancelled.

10.13

No transfer of property belonging to or endowed for purposes of an educational institution shall be valid unless prior written permission of the Director, on the ground of the transfer being necessary or beneficial to or expedient in the interest of the institution, has been obtained.

10.14

To change the name of the institution, the manager may submit application in two copies to District Inspector of Schools along with the attested copy of the resolution of the committee of management to change the name of the institution. The District Inspector of Schools shall send his recommendation to the Secretary, Board of Secondary Sanskrit Education, U.P. Lucknow within 15 days. The Secretary of the Board shall place the proposal before the Recognition Committee and shall act accordingly to the recommendation of the committee.

Rules for the Admission of Regular Examinees

10.15

(1) The examinees of a recognized Institution desiring admission in the examination conducted by the Board, shall submit the fees fixed for the examination to the Head of the Institution latest by 31st July of the year and fill the Application Form on prescribed proforma explaining the subject or subjects which they are taking for the examination. The Head of the Institution shall have the authority to remove the name of the student from the Institution who has not submitted the fees within the fixed period.

A regular student after filling the Application Form from any Institution, shall not be permitted to change the Institution, except when District Inspector of Schools has given permission after certifying the facts related to shifting of parents from the place of education to other place.

(2)

The Head of the Institution shall send the Application Form along with the Crossed Bank Draft to the Secretary of the Board. In condition of sending the Application Form after 30th September, the Head of the Institution shall pay the late fee at the rate of Rs. 20/- per Application Form.

(3)

The Head of the Institution shall send the Application Form along with the late fee by 10th November.

(4)

The Secretary of the Board shall arrange the Application Forms for the use to the regular examinees, In condition of delay, the Secretary shall take action as per the requirement.

(5)

The Head of Institution shall send to the Secretary of the Board the Application Forms on the prescribed proforma and the following-

(a)

The certificate that students in the Institution are admitted in accordance with the regulations of the Board.

(b)

A certificate that the students completed the course from the Institution.

(c)

That the students completed the exercises prescribed in the syllabus.

(d)

Those students who failed two times as regular examinees from any Institution, shall not be allowed for admission in any Institution.

Attendance

10.16

(1) The Institution shall remain open for 220 working days in every academic year. The days of examination and

co-curricular activities shall be included into.

(2)

No student of Prathma and Purva Madhyama shall be allowed to appear in the examinations conducted by the Board until the completion of attendance of 75% of total lectures fixed between the two academic sessions.

(3)

No student of Uttar Madhyama shall be allowed to appear in the examinations conducted by the Board until the completion of attendance of 75% of total fixed lectures including periods of practical works, if any, in two academic sessions in every subject in which examination is to be held.

(4)

For above calculation of lectures, one lecture means the teaching/practical period allowed in the time table of the Institution.

(5)

It shall be the discretion of the Head of the Institution in calculating the attendance of those students who have studied in Purva Madhyama or Uttar Madhyama for more than one year to calculate the attendance of any one year along with the attendance in Purva Madhyama-II or Uttar Madhyama-II-classes. Those students who have been given permission to appear in National Cadet Core, Pradeshik Sewa Dal or Pradeshik Army Camp or Agriculture Extension Services in rural areas or Saint John Ambulance Camp or Sports or Educational Tours, shall be given desirable advantage in class attendance.

Reiteration-Under this regulation, the advantage of the attendance in the class shall be shown alongwith the comments on it. The account of advantage of such shall be kept properly.

(6)

Those students who are detained or failed in Prathma, Purva Madhyama or Uttar Madhyama of the Board, their attendance percentage shall be calculated of that year in which they want to appear in the examination:

Provided that those students who have applied for the permission to appear in the examination of Purva Madhyama or Uttar Madhyama and their names are in the attendance roll of the Institution or have not appear in the examinations after filling the Application Forms percentage of two academic session shall be calculated.

Detained means not allowing appearing in Prathma, Purva Madhyama or Uttar Madhyama due to any valid reason.

(7)

For attendance by the student for examination of Prathma or Purva Madhyama, the attendance from any Institution outside the dominion of the Board shall be calculated.

(8)

For those students declared pass as a result of scrutiny in the Prathma or Purva Madhyama, their academic year shall be considered to have commenced after ten days of the information of the same.

Note-After the declaration of undeclared result, the calculation of attendance of the students admitted in Uttar Madhyama of any Institution shall be done from the tenth day of declaration of the same.

(9)

Any student who has been in any part of the session in an Institution, his attendance shall be calculated for attendance percentage required for Uttar Madhyama examination including their attendance of previous Institution.

(10)

No examinee shall be detained from examination by the Head of the Institution, if he has completed the conditions for appearing in the examination of the Board except the highly unsatisfactory work:

Provided that under this regulation not more than ten percent of total number of students of the class shall be barred. The Head of the Institution can use the authority to bar the student three weeks prior to the commencement of the examination. No appeal shall lie against it.

(11)

The Head of the Institution can bar those students before appearing in the examination of the Board who have not deposited uniform, baggage for physical exercise in National Cadet Corps or have not deposited cost in lieu of before the commencement of the examination.

(12)

Rule for minimum attendance shall be strictly followed. The Head of the Institution can condone the deficiency in the attendance as follows-

(a)

Ten days for the examinee of Prathma or Purva Madhyama examination, and

(b)

Ten lectures including practical lectures given in every subject to the examinee of Uttar Madhyama.

In cases of examinee whose one year attendance is to be calculated, their limit of condonation shall be half, Le. 5 days or 5 lectures, as the case may be.

Change of Subject

10.17

The Head of the Institution can permit for change of subject within one category or from one category to another is Purva Madhyama-I or Uttar Madhyama-I. No permission shall be given for change of subject in one category or in one category to another in Purva Madhyama-II or Uttar Madhyama-II, but under special circumstances related to failed or barred examinees can be given permission for change of subject or category by the Secretary of the Board. The Secretary of the Board shall provide the permission after the perusal of the relevant records.

Rules for the Entry of Private Examinees

10.18

Private examinees may be allowed to appear in the examinations of the Board as follows-

(1)

A person desiring to appear as private examinee in the examinations of the Board shall forward before 14th August, the Application Form along with prescribed fees to the Secretary of the Board through the Head of the Institution, who shall make the entry in register on prescribed form to be filled by the examinee. The Application Form shall be forwarded to the Secretary of the Board as follows-

(a)

For Purva Madhyama or Uttar Madhyama, a certified copy of the mark sheets and certificate passed by the examinee.

(b)

The certified copy of School Leaving Certificate of the last institute attended by examinee, if any.

(c)

The Head of the Institution who is the forwarding officer declared by the Board shall forward the Application Forms of private examinees to the Secretary of the Board following the prescribed procedure established by the Board after verification from the records. Incomplete or incorrect Application Forms may be rejected by the forwarding officer and the information of the same shall be sent to the Secretary of the Board. The Application Form submitted by the private examinee just before the examination, shall not be considered under any circumstances. Action shall be taken by the Secretary of the Board against those forwarding officers who present incomplete and incorrect Application Forms.

In case of private examinees, who are in service somewhere else, shall get the Application Form attested by their officer of the concerned office. It shall be a crime to hide the fact of employment and on the basis of the same examination result shall be cancelled after thorough enquiry.

(2)

For the private examinees the Application Forms can be obtained by paying fixed cost to the forwarding officer.

(3)

The Forwarding officer can accept the Application Forms alongwith late fees of Rs. 25/- till 31st August, but the Application Forms duly examined and signed by them shall be sent to the Secretary of the Board till 14th September.

(4)

The private examinees shall not send the Application Forms direct to the Secretary of the Board. All the Application Forms send directly shall stand cancelled.

The Eligibility of the Private Examinees

10.19

A private examinee shall appear in Purva Madhyama Examination as follows-

(1)

Those examinees who have passed any examination from the following provided that two years have passed after passing the examination-

(a)

Prathma examination or the examination held in Uttar Pradesh previously known as Hindustani Middle Examination or

the examination conducted by other states than Uttar Pradesh or any other equivalent examination.

(b)

Examination of Class-8 from the Institution recognized by U.P. Board of Secondary Education or Educational Department of the Uttar Pradesh or similar examination outside of Uttar Pradesh on the condition that the school is recognized and the examination are acknowledged and has passed the examination in Sanskrit subject in Class 8th.

(c)

Those examinees who have passed Purva Madhyama or any other equivalent examination from the Institution in or outside Uttar Pradesh opting Sanskrit as a subject.

(d)

For verification of age, transfer certificate of last attended Institution, if any, or birth certificate from Municipal Board or an oath certificate duly attested by First Class Magistrate or Notary. Those Private Examinees who have appeared in High School Examination but have failed, their age certificate issued by the Centre Superintendent shall also be accepted.

(e)

Any examinee who has studied in an Institution except Primary School shall not be allowed as private examinee in Purva Madhyama Examination until the gap period is equal to that period which is required to appear in the examination during study.

(2)

(a)

If any examinee desiring to appear in that category of examination in which he studied after 31st of July of previous calendar year in any Institution recognized by Board shall not be eligible to appear private examinee.

(b)

Notwithstanding anything else in above clause, the Board may admit the following category of private examinees.

(i)

Any examinee who has migrated in the State of Uttar Pradesh due to transfer of the parents thereof.

(ii)

Any examinee who was not able to be a regular student due to his prolonged sickness or the sad demise of his/her parents or any unforeseen circumstances of similar category:

Provided that in both above mentioned cases, the name of the student shall be finally removed from the nominal roll of the Institution, his/her attendance should be 75% or above. The above provision shall not be applied to those students for which only one year attendance is calculated.

(3)

Private examinees may seek admission in any Institution for studies in special subject or subjects and may study there part time.

The Examinees of out of the State

10.20

The examinees residing outside of the territorial jurisdiction of the Board, can be allowed to appear as private examinees in the examinations of the Board provided that they are still permanent inhabitants of Uttar Pradesh at present and due to some adequate reasons have migrated temporarily in other States. The Application Forms of such examinees shall be forwarded by the District Education Officer or competent authority of that states who shall certify that the examinee is a resident of Uttar Pradesh.

The Application Forms along with Rs. 10.00 as registration fee and the fees fixed for the examination shall be sent till first September to the Head of the Institution that examinee has opted his/her forwarding centre. Such Application Forms sent directly to the Secretary of the Board by the examinee or competent authority shall be rejected.

Change of Subject and Examination Centre

10.21

Ordinarily the private examinees shall not be given permission of change of subject and examination centre.

To Appear in Equivalent Examinations

10.22

The private examinees of the Board shall not be given permission to appear in equivalent examinations of the Board or any other autonomous body.

The Certificate of practical Work of the Private Examinees

10.23

Notwithstanding in above regulations, the private examinees can opt the subjects of practical work provided they have to do practical work in those Institutions that are recognized by the Board. They have to submit a certificate of the same by the end of January. A private examinee has not to submit the above certificate he failed last year in the same examination.

Private Examinees Committee

10.24

The Application Forms of private examinee submitted by the Head of the Institution, shall be scrutinized by a Committee appointed under the sub-regulation (14) of Regulation 5.02 of Chapter 5. The Committee may accept or reject the Application Forms of private examinees.

Eligibility to Appear in Additional Subjects

10.25

Notwithstanding in the above regulations the following private examinees may appear in the examinations of the additional subjects of the Board.

(a)

A private examinee who passed Prathama and Purva Madhyama Examinations may be admitted to those examinations with additional subjects or categories:

Provided that his/her option shall be confined to the subjects of one category.

It is further provided that he/she can not opt those subjects in which they are already passed.

(b)

A private examinee who passed Uttar Madhyama examination can appear in Uttar Madhyama Examination with additional subjects : Provided that he/she might have opted additional subjects other than those in which he/she has already passed.

10.26

That the Prathama, Purva Madhyama and Uttar Madhyama examinations conducted by the Board shall be equivalent to Junior High School, High School and Intermediate Examinations conducted by the Board of Secondary Education, Uttar Pradesh, Allahabad.

Division

10.27

The examinees who pass the examinations conducted by the Board shall be awarded either of three divisions. An examinee securing 75% or above of total marks shall be awarded having passed with honor.

10.28

Under any circumstances an examinee can not be permitted in the examination conducted by the Board as regular and private candidate simultaneously.

10.29

In case an examinee fails in a subject and secures 25% or more marks in that subject may be given grace marks up to 33% in that subject in the light of the rules determined from time to time.

Scrutiny-Procedure

10.30

The answer books of those examinees who failed in only one subject by not more than 5% marks in main examination shall be revaluated with fee or Application Form.

The scrutiny of other examinees answer books shall be done as follows-

(a)

A examinee who appeared in the examinations of the Board may submit Application Form for scrutiny.

(b)

Along with the Application Forms, a Bank Draft of Rs. 40.00 For the examinee out of the State may send the fee as postal order or crossed bank draft of State Bank of India payable at Lucknow in favour of the Secretary of the Board.

(c)

All such scrutiny Forms are to be submitted to the Secretary of the Board within 30 days since the publication of the result through registry.

(d)

In the matter of scrutiny, that affects the result of the examinee, shall be communicated to, but in case of no effect no communication shall be made.

(e)

During scrutiny revaluation of answer-book is not made and it is scrutinized the awarding of marks in question, carrying forward and totaling of marks shall be observed.

Fees

10.31

(a)

The Fees for the following shall be incurred from the examinees on the recommendation of Examination Committee and determination of the Executive Council of the Board under the provisions made in Section 10 of U.P. Act no. 32 of 2000

-

(1)

Fee for Prathama Examination.

(2)

Fee for Purva Madhyama Examination.

(3)

Fee for Uttar Madhyama Examination.

(4)

Fee for appearing in one or more additional subjects in main examination.

(5)

Fee for scrutiny.

(6)

Fee for second copy of mark sheet.

(7)

Late payment fee.

(8)

Fee for second copy of admit card.

(9)

Fee for change in name in the certificate.

(10)

Fee for second copy of certificate.

(11)

Fee for migration certificate.

(12)

Fee for second copy of result sheet for Head of the Institution.

(13)

Private form forwarding fee.

(14)

Application Form for change in name.

Note-Every Application Form shall reach the office of the Board within three years from 31st March of the Examination year in which the examination was held. The applicant has to give an affidavit on paper with affixed stamp which should be duly attested by the Class-I Magistrate or notary in which genuine reason shall be explained for change in the name and that is to be attested by the Gazetted Officer. The examinee shall have to advertise the change of name in three different dates of local newspaper and attach the same with application form.

(b)

The Application Form for change in the name of the Uttar Pradesh employees shall be sent by the Head of Department.

(c)

Change in name of the Government employees of States other than Uttar Pradesh shall be done through Application Form. If similar change is made by concerned State Government, its information is to be given to the Secretary of the Board by the Head of the department or the Secretary of the related Department.

(d)

In case of application for change in name is given by the Central Government employee. Name shall be changed, if the similar change is made by the Central Government and the Board shall be informed accordingly by the Secretary of the concerned ministry.

(e)

If name changed for any examination, the change in name in certificates of other examinations which are issued or to be issued to the examinee shall be changed without new affidavit but fees as prescribed laid down shall be deposited.

(f)

The affidavit and the Application Forms for change in name shall be attested by the father of the examinee or the guardian of the examinee as the case may be.

Refund of Fees

10.32

Fees paid once for permission to appear in any examination of the Board shall not be refunded except under following conditions-

(1)

Conditions in which full fees shall be refunded-

(a)

Death of the examinee before examination.

(b)

An examinee who has paid prescribed fees for forthcoming examination is declared successful in the same examination due to scrutiny or release of detained result.

(c)

An examinee who deposited fees for the examination, but is not able to appear in the same due to sickness.

(2)

Conditions in which fees shall be refunded after deduction of Rs. 5.00-

(a)

The application is rejected either by forwarding officer or the Board.

(b)

When the examinee deposited excess amount than that of prescribed fees.

(c)

If any other person on behalf of the examinee has deposited the fees by mistake for any examination of the Board.

Note-

(i)

'Fees' means only the examination fees and late fees are not included in it.

(ii)

Application Form for refund of fees shall be submitted within two years of depositing the fees to the Board.

(iii)

Application Form for refund of fees is not necessary in respect of that candidate whose Application Form has been rejected by the Board.

Postponement of Fees

10.33

Any examinee who is unable to appear in any examination shall be allowed to appear by keeping fees postponed under the following conditions-

Examinee was seriously ill during the examination and the medical authority certified his inability to appear in the examination. Application Form of the examinee for keeping the fee postponed shall be sent to the Secretary of the Board through Head of the Institution or Centre Superintendent till 1st May of the examination year.

Note-Fees postponed once shall not be postponed again.

Admit Card and Method to Obtain

10.34

The Secretary of the Board after being satisfied that the examinee has fulfilled the requirement of the Board shall give the admit card to Centre Superintendent and Centre Superintendent later on to the examinee.

Private examinee may obtain admit card from the Superintendent of the examination centre before 48 hours of the first day of examination. Not doing so, they shall have to pay fine of Rs. 2 per day.

If the Secretary of the Board is satisfied that the admit card of examinee is lost or destroyed, he can give its second copy after the payment of prescribed, fee.

Rustication and Expulsion

10.35

Notwithstanding anything in these Regulations-

(1)

Any examinee who has been rusticated at any time within the academic year, shall not be allowed to appear in any examination to be held in that academic year.

(2)

Any such examinee who was expelled from the Institution after sending Application Form and non-admission in any Institution, shall not be allowed to appear in the examination.

Explanation-

(a)

If he is given the above punishment during examination or before the end of the academic year in which the examination is held, his examination will be cancelled.

(b)

Any examinee who passed the examination, shall not be allowed to appear in any examination before the end of the term of the punishment.

Second Copy of Mark sheet and Certificate

10.36

The Board can give the second copy of the mark sheet and the certificate to any examinee under following conditions in case the examinee submits the Application Form with prescribed fees-

(a)

If the mark sheet or the certificate is lost.

(b)

If the mark sheet or the certificate is deformed or torn out or deteriorated.

(c)

If the mark sheet or the certificate is blurred, the same shall be submitted to the Board for cancellation:

Provided that the examinee of above categories shall have to present their affidavit. If the examinee is below 20 years the affidavit shall be endorsed by the father or the guardian as the case may be :

Provided further that in case of loss or deformed of mark sheet or certificate, an advertisement shall be made in daily newspaper of state circulation stating the same and a copy of newspaper shall be sent to the board with affidavit as desired above.

Chapter 11

Sanskrit Language Promoting Committee

11.

01.

To promote and expand Sanskrit language in State, there shall be a following committee-

1. The chairman of the Board shall be ex-officio chairman of the committee.

2. The Secretary of the Board shall be the convener of the committee.

3. Following nominated members by the State Government as provided under sub-section 3 of Section 3 of the Act-

(a)

Two Principals of Sanskrit degree colleges maintained by the State Government.

(b)

Three academicians.

(c)

Two Deputy Inspectors of Sanskrit Schools.

(d)

Vice-chancellor of the Sampurnanand Sanskrit University, Varanasi or his nominee.

(e)

Two Heads of the Departments of Sampumanand Sanskrit University, Varanasi.

(f)

Inspector, Sanskrit Pathshalayen, Uttar Pradesh.

(g)

Deputy Director, Sanskrit Uttar Pradesh.

11.02

Sanskrit Language Promoting Committee shall provide suggestions to the Board on the subjects or matters related to promoting Sanskrit Language and education as directed by the Board or any Committee of the Board.

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Translation